



File No: EXP202301529

RESOLUTION OF RIGHTS PROCEDURE

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Opposition and Deletion against GLOBAL KAPITAL GROUP SPAIN, S.L. (hereinafter, the respondent) without their request receiving the legally established response. The complainant states that, on September 23, 2022, they requested the respondent to delete their data subject to processing, as well as their opposition to the processing of their data for marketing purposes or its transfer to third parties and the creation of financial profiles about themselves, without having received a response within the legally established timeframe.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on April 2, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any arguments they deemed appropriate within a period of fifteen working days. This entity states the following:

"...we want to detail that this is a client who has an active credit with our entity. The money corresponding to the principal of this credit was transferred to the client's account, although we have not yet received the corresponding payment. Furthermore, the client has filed a lawsuit in the Courts of First Instance requesting the annulment of the contract. For these reasons, we cannot proceed with the deletion of their personal data. On the other hand, we did proceed with the exercise of the right of opposition, removing the client's data from our database related to the creation of financial profiles or marketing..."

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FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within a period of fifteen working days, they may formulate any arguments they consider appropriate. The complainant, in summary, continues to state that their requests have not been addressed.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for them. Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this transfer did not allow for the understanding that the complainant's claims were satisfied. Consequently, on April 2, 2023, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure.

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failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with this procedure the guarantees and rights of the complainant are duly restored.

III

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to address such a request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Article 21 of the GDPR, relating to the right to object, establishes the following:

- "1. The interested party shall have the right to object at any time, for reasons related to their particular situation, to the processing of personal data concerning them based on the provisions of Article 6, paragraph 1, letters e) or f), including profiling based on those provisions. The data controller shall cease processing the personal data unless it demonstrates compelling legitimate grounds for the processing that override the interests, rights, and freedoms of the interested party, or for the establishment, exercise, or defense of legal claims.
2. When the processing of personal data is for direct marketing purposes, the interested party shall have the right to object at any time to the processing of personal data concerning them, including profiling to the extent that it is related to such marketing.
3. When the interested party objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.
4. At the latest at the time of the first communication with the interested party, the rights indicated in paragraphs 1 and 2 shall be explicitly mentioned to the interested party and shall be presented clearly and separately from any other information.
5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the interested party may exercise their right to object by automated means that apply technical specifications.
6. When personal data are processed for scientific or historical research purposes or for statistical purposes in accordance with Article 89, paragraph 1, the interested party shall have the right, for reasons related to their particular situation, to object to the processing of personal data concerning them, unless such processing is necessary for the performance of a task carried out for reasons of public interest."

V

Article 17 of the GDPR, which regulates the right to deletion of personal data, establishes the following:

- "1. The interested party shall have the right to obtain from the data controller the deletion of personal data concerning them without undue delay, and the controller shall be obliged to delete personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation established in Union or Member State law applicable to the controller;

- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).
2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replicas of them.
3. Paragraphs 1 and 2 shall not apply when the processing is necessary:
- a) for exercising the right to freedom of expression and information;
 - b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
 - c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
 - d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes, in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impede the achievement of the objectives of that processing, or
 - e) for the establishment, exercise or defense of legal claims."

VI

During the processing of this procedure, the entity being complained about has responded to this Agency, but does not demonstrate having addressed the request made by the complainant regarding their rights or having denied it with justification, and has sent the required response to their request. Thus, it cannot be accepted that the response that corresponds to be given can be manifested on the occasion of a mere administrative procedure, such as the submission of allegations in connection with this procedure, initiated precisely for not properly addressing the request in question.

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The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in the event that there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of the request is likewise obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision taken regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 17 of the GDPR and Article 21 of the GDPR have been infringed and to urge GLOBAL KAPITAL GROUP SPAIN, S.L. with NIF B87258091, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested rights or denying them with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A. and to GLOBAL KAPITAL GROUP SPAIN, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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